

	complaint or answer, as the case may be.” (Code Civ. Proc., § 438(h)(1).) A. REQUEST FOR JUDICIAL NOTICE Defendant requests judicial notice of two documents: (1) Certified translation of July 1, 2023 text messages exchanged between Plaintiff and Defendant, offered to establish the existence and date of the communication containing the exact language that Plaintiff identifies as the alleged breach of contract, attached as Exhibit A and (2) Plaintiff's sworn declaration dated October 31, 2025, filed in Orange County Superior Court Case No. 30-2025-01520822-CL-UD-CJC, attached as Exhibit B. The request for judicial notice is DENIED as the Certified translation of July 1, 2023, text messages exchanged between Plaintiff and Defendant, offered to establish the existence and date of the communication containing the exact language that Plaintiff identifies as the alleged breach of contract. This piece of evidence is not something that the Court may take judicial notice of and is not appropriate to consider when determining a motion for judgment on the pleadings. The request for judicial notice is GRANTED as to Plaintiff's declaration filed in Case No. 2025 01520822. “[P]leadings and declarations are records of a court of this state and therefore qualified for permissive judicial notice under Evidence Code section 452, subdivision (d).” (Tucker v. Pacific Bell Mobile Services (2012) 208 Cal.App.4th 201, 219.) B. CAUSES OF ACTION Based on the Court's interpretation of the operative Complaint, the Complaint contains two causes of action: (1) breach of oral contract and (2) promissory and constructive fraud. Defendant addresses an emotional distress claim, but based on the Court's reading of the Complaint, it appears that Plaintiff is
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